

25PSCV04287 25PSCV04287

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Case Number: 25PSCV04287 Hearing Date: September 14, 2026 Dept: H

Obregon, et al. v.

FCA US LLC, et al.,

Case No. 25PSCV04287

ORDER ON MOTION

FOR JUDGMENT ON THE PLEADINGS

Defendant

FCA's MOTION FOR JUDGMENT ON THE PLEADINGS is GRANTED with 30 days' leave to amend as to the second cause of action.

Background

Plaintiffs

Rafael Garcia Obregon ("Obregon") and Deon Garcia ("Garcia") (collectively "Plaintiffs") allege as follows:

On December 9, 2023, Plaintiffs

leased a 2023 Dodge Charger ("the Charger"). The amount paid/payable is \$64,938.64. Defendant FCA US LLC ("FCA") issued an express warranty for the Charger, which was leased from a dealership. Plaintiffs received various warranties, including "a 3-year/36,000 mile express bumper to bumper warranty, a 5-year/60,000 mile powertrain warranty which, inter alia, covers the engine and the transmission, as well as various emissions warranties that exceed the time and mileage limitations of the bumper to bumper and powertrain warranties." The Charger contained various defects and nonconformities to warranty at the time of delivery, and developed others, including emission, transmission, and engine system defects. Plaintiffs presented the vehicle for

repairs three times between May and September 2025.

On December

1, 2025, Plaintiffs filed a complaint, alleging causes of action against FCA and Does 1-10 for: (1) Violation of Song-Beverly Act – Breach of Express Warranty, (2) Violation of Song-Beverly Act - Breach of Implied Warranty, and (3) Violation of the Song-Beverly Act Section 1793.2.

A Post-Mediation

Status Conference/Case Management Conference is set for November 19, 2026.

Legal

Standard

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1064.) “In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged.” (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) When considering demurrers and judgment on the pleadings, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) A motion for judgment on the pleadings does not lie as to a portion of a cause of action. (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.)

“In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

Discussion

FCA

moves for a judgment on the pleadings as to the second cause of action on the grounds that the claim for breach of the implied warranty of merchantability is inadequately pled. FCA argues that the Complaint fails to allege facts establishing that any defect arose within one year of the date of sale. (Civ. Code §§ 1791.1, 1794.)

Meet
and Confer

“Before filing a judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).)

FCA’s counsel attests that on July 10, 2026, the parties telephonically met and conferred regarding the grounds for the operative motion but were unable to reach an informal resolution. (Park Decl., ¶ 1.)

Based on this information, the Court finds that the parties sufficiently met and conferred pursuant to the Code and turns to the motion’s merits.

Second Cause of Action: Violation of Song-Beverly Act – Breach of Implied Warranty [FN]

“The statute of limitations for an action for breach of warranty under the Song–Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code.” (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1306.) Under this section, “[a] cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code, § 2725, subd. (2), italics added; See Krieger v. Nick Alexander

Imports, Inc. (1991) 234 Cal.App.3d 205, 211.) Moreover, “[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 134, citing Comm. Code § 2725, subd. (2).)

FCA asserts that the implied warranty claim lacks factual support because the complaint fails to allege facts indicating that any defect, let alone a latent defect, existed and manifested during the one-year period following the Charger’s delivery. (Mot., at pp. 5-6.)

The complaint alleges the following facts:

On December 9, 2023, Plaintiffs leased the Charger from a dealership. (Compl., ¶ 8.) While FCA did not sell the vehicle, it issued various warranties, including, but not limited to, “a 3-year/36,000 mile express bumper to bumper warranty, a 5-year/60,000 mile powertrain warranty which, inter alia, covers the engine and the transmission, as well as various emissions warranties that exceed the time and mileage limitations of the bumper to bumper and powertrain warranties.” (Id., ¶ 9.) The Charger was delivered with serious defects and nonconformities to warranty. (Id., ¶ 10.) Plaintiffs presented the Charger for repairs as follows: (1) May 2025 for abnormal noise emitting upon startup; (2) August 2025 for oil leaking and abnormal noise emitting upon startup; and (3) September 2025 for oil leaking and abnormal noise emitting upon startup. (Id., ¶¶ 11-13.)

As to the second cause of action, Plaintiffs make conclusory allegations that the Charger was not fit for ordinary purpose and the defective vehicle systems and components were present at the time of sale “upon information and belief.” (Id., ¶¶ 38-41.)

In opposition, Plaintiffs invoke the latent-defect doctrine under *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, arguing that a latent defect that is not discovered until after the duration of the implied warranty may still show a breach of the implied warranty. (Opp., pp. 3-5.)

The Court determines that this cause of action is not

sufficiently pled. Plaintiffs make conclusory allegations mirroring the definition of “implied warranty of merchantability” set forth in Civil Code section 1791.1 (see Compl., ¶¶ 38-41), but fail to allege any specific facts, such as what the latent defect was and what exactly rendered their Charger unmerchantable. Plaintiffs’ reliance on Mexia is thus unpersuasive.

Accordingly,

FCA’s motion for a judgment on the pleadings is granted, with 30 days’ leave to amend as to the second cause of action.

[FN] The Court notes that FCA’s motion states judgment on the pleadings is proper as to the “Fourth Cause of Action,” rather than the Second Cause of Action. (Mot., at p. 3.) The Court finds this to be a typographical error as there are only three causes of action and the preceding paragraph correctly identifies the motion as to the Second Cause of Action.